Harris County District Court

Cause No. 2024-CV-0049

Nicholas Cook, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Nicholas Cook

Date:	December 21, 2024
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Brandon Barnes, Dunn & Acosta LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case. I'd prefer not to put my full name on the transcript rihgt now.

Q: Ma'am, I'll remind you that this is a deposition and you are under oath. Your attorney has already agreed to the stipulations. Let's move on. Where were you on the day of the collision?

A: I was driving home from the grocery store in Baytown, Texas. I was in my own car, a sedan, and I had two bags of groceries on the passenger seat.

Q: What direction were you traveling, and what did you do at the intersection?

A: I was heading east on the main road and I wanted to turn left into the shopping center driveway. I had a green light, but there was oncoming traffic, so I waited for a gap. I started my turn when I thought it was clear.

Q: Did you see the other vehicle before the impact?

A: Not really. I saw headlights come around the curve, but I thought they were further away than they were. The other car came straight through and hit the driver's side of my car near the front wheel.

Q: How fast do you estimate you were moving when you started the turn?

A: Maybe ten or fifteen miles per hour. I was going slowly because I was turning.

Q: After the collision, what did you notice about your body?

A: My neck snapped forward and then back. Within a few minutes my neck was stiff and I had a dull headache at the base of my skull. By the next morning my shoulders hurt too, and turning my head to check my mirror was difficult.

Q: Did you seek medical care?

A: Yes. A paramedic checked me at the scene, and I went to an urgent care clinic later that evening. They took X-rays, which didn't show any broken bones, and they told me I had a whiplash injury. They gave me a soft collar and some anti-inflammatory medication.

Q: Have you continued treatment since then?

A: I've been going to physical therapy about twice a week. My doctor also referred me to a specialist for the headaches. I still do the stretching exercises at home most evenings.

Q: How has this affected your daily life?

A: I used to coach my nephew's soccer team on weekends, and I had to stop because I can't sit on the bleachers for long or turn my head to watch the field. Driving is harder too. I avoid left turns when I can, and I take longer routes. Sleeping is also difficult because I wake up with neck pain if I roll over.

Q: Have you returned to work?

A: I work as a bookkeeper, and I went back after about a week. I can do the job, but I take breaks more often because sitting at the computer for long periods makes my neck and head ache.